

trade(*a*), in all these cases, while the executor or trustee is liable for all losses, he must account to the *cestui que trust* for all clear profits. And where a trustee retired from his trust in consideration of his successor paying him a sum of money, it was held that the money so paid must be treated as forming part of the trust estate, and be accounted for by the retiring trustee (*b*).

5. **Giving to a trustee.** — Neither can a trustee bargain with his *cestui que trust* for a benefit, and it is even said that a *cestui que trust* cannot give a benefit to his trustees (*c*).

6. **Mortgagee regarded as a trustee to some intents.** — *Mortgages* are to some, though not to all, intents and purposes trustees, and in one case (the authority of which, however, has been doubted), where a mortgagor in fee died, and the mortgagee bought in the mortgagor's wife's right of dower, it was decreed that the heir of the mortgagor, on bringing his bill to redeem, might take the purchase at the price paid (*d*).

7. **Partners.** — *Partners* also stand in a fiduciary relation to each other (*e*), and if on the termination of the partnership by effluxion of time (*f*), or bankruptcy (*g*), or death (*h*), a partner instead of winding up the partnership affairs, retains the whole assets in the trade, so that in effect the

(*a*) *Docker v. Simes*, 2 M. & K. 655; *Willett v. Blanford*, 1 Hare, 253; *Cummins v. Cummins*, 8 Ir. Eq. Rep. 723; *Parker v. Bloxam*, 20 Beav. 295; *Wedderburn v. Wedderburn*, 2 Keen, 722; 4 M. & Cr. 41; 22 Beav. 84; *Townend v. Townend*, 1 Giff. 201; [*Flockton v. Bunning*, 8 L. R. Ch. App. 323, n.] If the trustee or executor be one only of a firm, he must account for his share of the profits. *Vyse v. Foster*, 8 L. R. Ch. App. 309; affirmed 7 L. R. H. L. 318; *Jones v. Foxall*, 15 Beav. 388.

(*b*) *Sugden v. Crossland*, 3 Sm. & G. 192.

(*c*) *Vaughton v. Noble*, 30 Beav. 34; see 39.

(*d*) *Baldwin v. Banister*, cited *Robinson v. Pett*, 3 P. W. 251, note (A);

and see comments thereon, *Dobson v. Land*, 8 Hare, 220; and compare *Arnold v. Garner*, 2 Ph. 231; *Matthiesson v. Clarke*, 3 Drew. 3.

(*e*) *Bentley v. Craven*, 18 Beav. 75; *Parsons v. Hayward*, 31 Beav. 199.

(*f*) See Lord Eldon's observations, *Crawshay v. Collins*, 15 Ves. 226.

(*g*) *Crawshay v. Collins*, 15 Ves. 218.

(*h*) *Brown v. De Tastet*, Jac. 284; *Wedderburn v. Wedderburn*, 2 Keen, 722; 4 M. & Cr. 41; 22 Beav. 84; [*The Lord Provost, &c., of Edinburgh v. The Lord Advocate*, 4 App. Cas. 823;] and see *Flockton v. Bunning*, 8 L. R. Ch. App. 323, n.